
Case	Title / Nature of Case
02:00 PM LINE 1 18-CLJ-03920	CROWN ASSET MANAGEMENT, LLC VS. SUNNATILLO MUHAMADIEV, ET AL
CROWN ASSET MANAGEMENT, LLC SUNNATILLO MUHAMADIEV	ROBERT J. COLCLOUGH PRO SE

Motion to Set Aside Default and Default Judgment

TENTATIVE RULING:

Defendant's unopposed motion to Set Aside Default and Default Judgment is **DENIED**.

Defendant contends that the complaint was time-barred. The account went into default on or about June 19, 2016; the last payment on the account was on November 5, 2015; the complaint was filed on July 31, 2018. The statute of limitations is four years. (Code Civ. Proc., § 337, subd. (a).)

The proof of service filed on November 30, 2018, shows that defendant was personally served with the summons and complaint on September 14, 2018. Defendant does not dispute service, but contends that he did not understand that he had to respond because English is not defendant's first language. That does not relieve defendant of responding to the complaint.

Defendant's motion is untimely. (Code Civ. Proc., § 437, subd. (b) ["The court may, upon any terms as may be just, relieve a party . . . from a judgment, . . . taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.") That defendant claims "I did not know about this case until 2025, when I received a Notice of Levy," is inconsistent with having been personally served in 2018.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with this ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

02:00 PM **LINE 2**

21-CIV-02564

PEARL WU, MD, ET AL VS. THE PERMANENTE MEDICAL GROUP, INC.

PEARL WU
THE PERMANENTE MEDICAL GROUP, INC.

TIMOTHY C. TRAVELSTEAD
SPENCER DAVIDSON

Motion to be Relieved as Counsel

TENTATIVE RULING:

The hearing is continued to July 8, 2026.
